

2013 WL 5614463 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Michael FERNANDEZ, Plaintiff(s),

v.

THE CITY OF NEW YORK, New York City Police Department, Police Officer **Tarik Clyburn**, Shield #15045
of the 44th Precinct and Police Officer Paul Brauer, Shiled #03283 of the 44th Precinct, Defendant(s).

No. 0305887-2013.
October 1, 2013.

Summons

Law Office of Andrew C. Laufer, PLLC, [Andrew C. Laufer](#), Esq., Attorney for Plaintiff, 255 W 36th Street, Suite 1104, New York, New York 10018, (212) 422-1020.

To the above named defendant(s) :

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiffs attorney within 20 days after service of this summons or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the place of incident.

Dated: New York, New York September 27, 2013

Plaintiffs, by and through his attorney, Law Office of Andrew C. Laufer, PLLC complaining of the defendants herein, upon information and belief, respectfully show to this Court, and allege as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned the plaintiff MICHAEL FERNANDEZ was a resident of the County of Bronx, City and State of New York.
2. That at all times hereinafter mentioned the defendant, THE CITY OF NEW YORK was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE DEPARTMENT was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
5. That at all times hereinafter mentioned the defendant, POLICE OFFICER **TARIK CLYBURN**, SHILED #15045 OF THE 44th PRECINCT and POLICE OFFICER PAUL BRAUER, SHILED #03283 OF THE 44th PRECINCT, were and still are employed with the NEW YORK CITY POLICE DEPARTMENT.

6. That prior to the institution of this action, a notice of claim was duly served upon and filed with the city on behalf of plaintiff.
7. That on or about August 14, 2012 a hearing was held by the City pursuant to municipal law 50H.
8. That at all time herein mentioned the officers were acting within the scope and course of their employment with the New York Police Department, and under color of state law.
9. That at all times herein mentioned, all of the actions of the officers alleged herein was done within the scope and course of his employment with the New York Police Department, and under color of the state law.
10. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in [New York's Civil Practice Law & Rules 1602](#) with respect to joint and several liability.

FIRST CAUSE OF ACTION

11. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.
12. That on or about March 21, 2012, at approximately 11:15 AM on or about 1440 University Avenue, County of Bronx, City and State of New York, its agents, servants and employees, including but not limited to officers of the 44th precinct, wrongfully and falsely arrested, imprisoned and detained plaintiff without any right or justifiable grounds therefore.
13. That the aforesaid arrest, detention and imprisonment continued at the 44th Precinct and elsewhere.
14. That the said arrest, detention and imprisonment was caused by the City, its agents, servants and employees, including but not limited to the police officers, without a warrant and without any reasonable cause or belief that plaintiff was in fact guilty of any crime.
15. That the city, its agents, servants and employees, as set forth above, intended to confine plaintiff; that plaintiff was conscious of the confinement; that plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.
16. That by reason of the false arrest, imprisonment and detention of plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and his business and employment, and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

SECOND CAUSE OF ACTION

17. Plaintiff repeats and realleges each and every allegation contained in the First Cause of Action as if fully set forth at length herein.
18. That immediately prior to and during the course of his arrest and detention, plaintiff was assaulted and battered by said police officers.
19. That the reason of the aforesaid, plaintiff sustained personal injuries, endured and will endure pain and suffering and loss of enjoyment of life, and economic loss, and was otherwise damaged.

THIRD CAUSE OF ACTION

20. Plaintiff repeats and realleges each and every allegation contained in the First, Second and Third Causes of Action as if fully set forth at length herein.

21. That the aforesaid actions, and resulting injuries to plaintiff, were due to the negligence of the City in the hiring, retention, and training of its employees, including the police officers involved in the arrest, assault and battery, and malicious prosecution of the plaintiff.

FOURTH CAUSE OF ACTION

22. Plaintiff repeats and realleges each and every allegation contained in the First, Second and Third and Fourth Causes of Action as if fully set forth at length herein.

23. That plaintiff was deprived of his rights, privileges and immunities secured by the Constitution of the United States of America and of the state of New York, and his rights pursuant to 42 USC sec.1983 by those who, under color of a statute or regulation of a state, caused plaintiff to be so deprived.

24. That the aforesaid actions by the detective officer were done pursuant to an official municipal policy or custom of the city, which policy involved the indiscriminate detention, interrogation, intimidation, and prosecution of individuals were engaged in criminal conduct, and for the purpose of thwarting the fair administration of justice.

25. That defendants herein, their agents, servants and employees, motivated in part by racial and/ or ethnic animus, conspired to deprived plaintiff of his federal civil and constitutional rights, in violation of [42 USC 1985](#).

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for his pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

Dated: New York, New York September 27, 2013

LAW OFFICE OF ANDREW C. LAUFER, PLLC

By: Andrew C. Laufer, Esq.,

Attorney for Plaintiff

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